

Vijay Kumar Saraswat v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 December 2015 · WRIT - C No. 66412 of 2015 · **Writ dismissed; petitioner relegated to paragraph 6.14 installment facility.**

HEADNOTE

Where the billed amount is undisputed and the consumer only seeks installment facility, paragraph 6.14 of the U.P. Electricity Supply Code, 2005 is a self-contained provision. The High Court will not itself fix installments; the consumer must approach the concerned official under paragraph 6.14.

FACTUAL SUMMARY

Vijay Kumar Saraswat filed a writ petition before the Allahabad High Court seeking installment facility on an electricity bill. He did not dispute the billed amount. Dakshinanchal Vidyut Vitaran Nigam Ltd. appeared and submitted that installment facility could be extended by the concerned official under paragraph 6.14 of the U.P. Electricity Supply Code, 2005, so the petitioner should approach that authority instead of asking the Court to fix installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility

HOLDING

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 is a self-contained provision for extending installment facility. Where the consumer does not dispute the billed amount and only asks the High Court to fix installments, the Court will not itself grant that relief; the remedy is to approach the concerned official under paragraph 6.14. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Where the billed amount is undisputed and the consumer only seeks installment facility, paragraph 6.14 of the U.P. Electricity Supply Code, 2005 is a self-contained provision. The High Court will not itself fix installments; the consumer must approach the concerned official under paragraph 6.14. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALLMENT FACILITY SHOULD BE GRANTED ON THE PETITIONER'S FACTS
Left to the concerned official under paragraph 6.14; the Court refused to fix installments itself. ¶ 1